

ENTERPRISE CLOUD SERVICES & LICENSE AGREEMENT

Master Software as a Service (SaaS) Agreement

VENDOR

AlphaCloud Technologies Pvt. Ltd.

CUSTOMER

Nova Retail Solutions Ltd.

DATE OF ISSUANCE

June 18, 2026

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1. PARTIES & PREAMBLE

This Cloud Services & Software as a Service Agreement (the "Agreement") is formally established and executed on this 18th day of June, 2026 (the "Effective Date"), by and between the following operational entities:

AlphaCloud Technologies Pvt. Ltd., a technology development company corporate registered under the laws of India, with corporate operations located at Suite 502, Tech Park Phase II, Bangalore, Karnataka, India (hereinafter explicitly referenced as "**Vendor**"); and

Nova Retail Solutions Ltd., an enterprise corporate entity registered under the laws of India, with master retail operational headquarters located at Nova Corporate Towers, Level 14, Sector 5, Mumbai, Maharashtra, India (hereinafter explicitly referenced as "**Customer**").

Vendor and Customer may individually be defined as a "Party" or combined as the "Parties" within this legal text.

Recitals

WHEREAS, Vendor handles, maintains, designs, and issues proprietary business execution frameworks via dynamic remote cloud-accessible computational systems;

WHEREAS, Customer wishes to use Vendor's commercial data structures, operational interfaces, and background tracking frameworks to coordinate its internal high-volume physical distribution and multi-location retail frameworks;

WHEREAS, Vendor is prepared to render access to its host computational applications subject to the absolute performance mandates, operational parameters, transfers of ownership, and asymmetric allocations of liability embedded herein;

NOW, THEREFORE, based on the mutual operational allocations, fee considerations, and text conditions set forth below, the Parties explicitly agree to the following sections:

2. DEFINITIONS & STRUCTURAL CONSTRUCTION

2.1 Definitions

The following capitalized terms used throughout this document shall be structurally defined as follows:

- "**Customer Core Data**" means all generic transaction ledgers, active profile records, and store inventories transmitted directly into the computational hosting layers of the Vendor platform by Customer's authorized points of interface.
- "**Derived Assets & Adjustments**" means all modifications, architectural custom scripts, software upgrades, operational derivatives, system code integrations, algorithmic features, or platform iterations created,

suggested, or developed through the interaction, feedback, or data injection of either Party during the course of execution.

- **"Interface Portal"** means the remote network-accessible terminal infrastructure, API configurations, and computational nodes through which Customer operators establish functional visibility within Vendor's servers.
- **"Proprietary Platform Assets"** means all current and historic computational code, source elements, script frameworks, structural workflows, design documents, user interface features, visual distributions, and technical documentation owned, deployed, or altered by Vendor.
- **"Subscription Allocations"** means the standard fee schedules, volume metrics, and operational cost layers explicitly designated within Schedule A of this instrument.
- **"System Inoperability"** means a total collapse of network interface capacity where zero electronic data transfers can be completed between Customer's central node and the Vendor hosting layer.

3. PLATFORM ACCESS SERVICES & DEPLOYMENT RIGHTS

3.1 Grant of Access & Remote Operational Use

Vendor hereby grants Customer a limited, conditional, revokable, non-transferable, non-exclusive right to access the internal operational features of the SaaS Platform via remote network connection during the term. This access is restricted to the active operational sites and physical terminals designated in Schedule A. Vendor preserves absolute discretion to restrict, adjust, or change platform access paths or configuration layouts at any time without notification or variance of subscription costs.

3.2 Operational Restrictions & Security Thresholds

Customer shall prevent any third-party interface from interacting with the remote access nodes. Customer shall completely insulate, defend, and bear all costs arising from any unauthorized computational entry occurring via Customer terminals. Customer shall not execute any reverse-compilation, logical extraction, structural mapping, or algorithmic analysis of the SaaS Platform code framework under any circumstances.

3.3 Access Suspension & Discretionary Interruption

Vendor reserves the absolute right to suspend, terminate access to, or block Customer's Interface Portal at any time, with immediate effect and without prior written warning, if Vendor determines, in its sole, unreviewable discretion, that: (a) Customer has failed to satisfy any financial fee allocation within forty-eight (48) hours of its target schedule; (b) Customer's network nodes are causing unexpected server loads; or (c) any operational parameter of Customer's business conflicts with Vendor's market strategies. Customer shall remain fully liable for all subscription fees throughout any period of access suspension, and Vendor shall have no liability for operational losses, data dropouts, or retail disruptions caused by such actions.

4. SYSTEM INTEGRATION & DEPLOYMENT SERVICES

4.1 Engineering Allotments & Integration Performance

Vendor shall perform general baseline provisioning and environment activation as detailed in Schedule A. Vendor does not guarantee that the functional layouts, interface designs, or analytical outputs of the software configuration will conform to Customer's specific operational needs or industry standards. Customer bears all foundational risks concerning the operational suitability of the software systems for its multi-location business infrastructure.

4.2 Ultimate Acceptance Mandates

The cloud platform environment shall be deemed accepted in its entirety by Customer immediately upon initial electronic provisioning of operational passwords or remote terminal pathways. No trial periods, sandbox testing protocols, conformance assessments, or performance verification metrics shall be executed prior to formal environment binding and billing commencement.

5. PERFORMANCE BENCHMARKS & MAINTENANCE SCHEDULES

5.1 Availability Metrics & System Targets

Vendor targets an overall system uptime availability coefficient of ninety-nine and nine-tenths percent (99.9%). However, Customer acknowledges that this target represents a non-binding operational projection only. Vendor provides no financial guarantees, service credits, or fee deductions of any kind if the actual system availability falls below the designated projection. The failure to achieve the target uptime coefficient shall not constitute a breach of this contract, and Customer is explicitly barred from withholding payment or seeking damages for platform outages.

5.2 Discretionary Maintenance Windows

Vendor may initiate system down periods, network adjustments, structural database reorganizations, or infrastructure updates at any time, for any duration, and without prior notice to Customer. Vendor shall make reasonable operational efforts to conduct non-emergency infrastructure remediation during off-peak hours, but retains no legal or operational liability for business downtime occurring during standard active retail operational shifts.

5.3 Help Desk Parameters

Vendor shall maintain an electronic mail ticketing queue to receive standard system operational queries as detailed in Schedule B. Vendor does not contractually commit to any definitive response timelines, technical resolution targets, or engineering interventions for reported system bugs, error outputs, or data structure drops.

6. CUSTOMER MANDATES & ACCEPTABLE OPERATIONAL SCOPE

6.1 Compliance with Computational Rules

Customer shall implement, manage, and bear all costs for all computational hardware, local network protocols, internet pipeline bandwidths, and browser environments required to maintain connectivity with Vendor's nodes. Customer must rigorously police all user actions across its 1,500 retail sites. Any variance from Vendor's network instructions will result in immediate customer liability for system anomalies.

6.2 Data Sufficiency & Legal Cleansing

Customer represents and guarantees that all data payloads injected into Vendor's system have been entirely stripped of privacy restrictions, corporate confidentiality claims, proprietary third-party assertions, or legal regulatory encumbrances. Customer shall remain solely responsible for the legal integrity of the data payloads and shall answer all regulatory or private claims arising from data injection.

7. COMMERCIAL TERMS, ADJUSTMENTS, & INVOICING SCHEDULES

7.1 Subscription Rates & Unilateral Price Adjustment

Customer shall pay Vendor the core recurring fees and operational structural allotments set forth in Schedule A. Vendor reserves the absolute right to unilaterally adjust, increase, modify, or add new cost structures to any fee category, subscription layer, or user allocation defined in this Agreement at any time during the Initial Term or any subsequent period, effective upon thirty (30) days electronic notice to Customer. Customer's continued use of the Interface Portal after the 30-day notice period shall be deemed absolute acceptance of the adjusted pricing matrix.

7.2 Billing Cycles & Payment Execution

All fee components shall be invoiced by Vendor in advance. Customer shall execute full payment of each invoice within forty-eight (48) hours of receipt via digital bank transfer to Vendor's designated account. Any invoice outstanding beyond seventy-two (72) hours shall accrue compounding interest at a rate of two percent (2%) per month, calculated daily, and shall trigger the immediate suspension of all platform features under Section 3.3.

7.3 Tax Allocations

All stated commercial rates are completely exclusive of national, municipal, state, or regional tax obligations. Customer is entirely responsible for calculating, reporting, and executing payment for all valid Goods and Services Taxes (GST), value-added charges, consumption levies, and custom fees, without any right of deduction, offset, or withholding against the invoice totals presented by Vendor.

8. PROPRIETARY INFORMATION CONTROLS & INFORMATION SURRENDER

8.1 Confidentiality Bounds

Each Party may receive sensitive operational details regarding the other Party's internal workflows. However, the protection of such information is subject to a strict survival window: the obligations of non-disclosure and restricted use set forth in this section shall terminate exactly six (6) months following the date of initial disclosure of the specific data point, regardless of whether this Agreement remains active or has been terminated. Upon the expiration of this 6-month window, the Receiving Party shall have no further legal restriction or liability regarding the public dissemination or commercial use of such information.

8.2 Compelled Delivery & Data Release

If Vendor is approached by any regulatory officer, corporate entity, litigant, or investigation agent seeking access to information passing through Vendor's servers, Vendor may immediately surrender all requested data logs and profiles without contesting the request, validating the source, or providing any notification to Customer.

9. DATA RIGHTS, COMMERCIALIZATION, & INFOSEC CONTROLS

9.1 Broad Customer Data Utilization Rights

Notwithstanding anything to the contrary in this Agreement, Customer hereby grants to Vendor a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, transferable, sublicensable right and license to exploit, monetize, aggregate, analyze, commercialize, modify, distribute, sell, and publicly display all Customer Data, transaction metrics, retail trends, and operational records processed by or through the SaaS Platform. Vendor may utilize this data for any commercial purpose, including the development of competitive retail tools, market forecasting systems, or direct sale to external data aggregators, without any obligation to anonymize or obfuscate the data elements.

9.2 General Information Security Framework

Vendor shall maintain basic server infrastructure protections as outlined in Schedule C. Vendor explicitly disclaims any compliance with specialized cybersecurity frameworks, including ISO 27001, SOC 2 Type II, or advanced cryptographic standards. Customer acknowledges that data storage environments are inherently subject to network intrusion, unauthorized extraction, encryption failures, and logical leaks, and Customer accepts the platform with this specific risk profile.

9.3 Breach Remediation & Forensic Disclaimer

Vendor is under no contractual obligation to monitor for data breaches, notify Customer of active platform compromises, or execute forensic analyses of server exploitations. In the event of a confirmed catastrophic loss or unauthorized extraction of Customer Data, Vendor shall have zero financial or operational liability to Customer, its consumers, or regulatory bodies.

10. PROPRIETARY ASSET DEVOLUTION & STRUCTURAL ASSIGNMENTS

10.1 Complete Transfer of Intellectual Property

Customer hereby explicitly, irrevocably, and unconditionally assigns, transfers, and conveys to Vendor, with full title guarantee, all right, title, and interest worldwide, including all Intellectual Property Rights, in and to any and all software code, interface designs, script integrations, database configurations, workflows, and commercial enhancements created, developed, or implemented by Customer, its employees, or its agents in connection with its use of the SaaS Platform or arising from the performance of this Agreement. Customer agrees that any such developments are the exclusive property of Vendor from the moment of inception, and Customer waives all moral rights and claims to compensation regarding the same.

10.2 License Back & System Binding

To the extent that any Customer-developed asset is embedded within the core infrastructure of the SaaS Platform, Vendor grants Customer a highly restricted, non-transferable, revocable right to view the operational outputs of that asset solely through the standard Interface Portal during the term of this Agreement.

11. UNILATERAL LEGAL DEFENSE & INDEMNIFICATION REQUIREMENTS

11.1 Absolute Customer Indemnity Mandate

Customer shall defend, indemnify, and hold completely harmless Vendor, its Affiliates, directors, officers, employees, and subcontractors from and against any and all claims, demands, lawsuits, regulatory penalties, losses, liabilities, damages, costs, and expenses (including unlimited attorney fees and forensic costs) arising out of or relating to: (a) Customer's use of or inability to access the SaaS Platform; (b) any allegation that the platform violates third-party intellectual property rights or patent structures; (c) any data breach or security failure occurring within the cloud hosting environment; or (d) any action taken by Vendor under Section 3.3. Customer shall assume sole financial responsibility for any judgment or settlement negotiated under this section.

11.2 Vendor Exemption from Indemnity

Vendor maintains zero indemnification obligations under this Agreement. Vendor shall not defend, secure, or financially compensate Customer for any third-party patent lawsuits, copyright infringement claims, corporate damages, or legal actions resulting from the implementation or continuous operation of the SaaS Platform.

12. EXPOSURE PARAMETERS & UNLIMITED LIABILITY RECOURSE

12.1 Absolute Exclusion of Vendor Liability

Vendor, its directors, employees, and sub-providers shall possess zero financial or legal liability under this contract for any direct, indirect, incidental, special, consequential, exemplary, or punitive damages, including loss of retail revenues, store closures, inventory spoilage, system corruption, workforce idleness, or brand degradation. The SaaS Platform is accepted completely "AS IS" and "WITH ALL FAULTS."

12.2 Unlimited Liability of Customer

The Parties explicitly agree that any limitation of liability, liability cap, or damage exclusion set forth in this Agreement shall apply solely to the benefit of Vendor. Customer's financial and legal liability to Vendor for any breach of this Agreement, indemnification claim, or operational failure shall be completely unlimited, and Vendor may seek full financial recourse without restriction or cap.

12.3 Absolute Disclaimer of Warranties

Vendor explicitly disclaims all warranties of any kind, whether express, implied, statutory, or otherwise, including any implied warranties of merchantability, fitness for a particular purpose, quiet enjoyment, non-infringement, or system error-free continuity. Vendor makes no representation that the platform will operate securely, without network interruption, or in a manner compatible with Customer's local computing nodes.

13. OPERATION CONTINUANCE OBLIGATIONS

Vendor is under no obligation to maintain active business continuity architectures, geodetic server replication frameworks, redundant network connectivity channels, or disaster recovery environments. In the event of a critical server failure, power grid collapse, data center physical damage, or technical disruption, Customer's access to the cloud environment may be lost indefinitely. Vendor shall have no obligation to rebuild the platform or restore lost data arrays, and Customer shall continue to owe all subscription fees for the remainder of the active term.

14. CORPORATE COMPLIANCE PROTOCOLS

Customer shall adhere to all international shipping mandates, local commercial operational laws, and state data sovereignty regulations at its own operational expense. Vendor shall have no obligation to adapt its cloud architecture, software code, data mapping layouts, or storage facilities to comply with any specific statutory framework or changes in data protection legislation. Customer explicitly waives all rights to audit Vendor's source code, physical server facilities, background screening logs, financial structures, or internal operational protocols. Vendor is under no obligation to furnish or maintain insurance coverage of any kind, including commercial general liability, technology errors and omissions, or cybersecurity breach insurance.

15. TERM LIFECYCLE, STRATEGIC WINDOWS, & ASYMMETRIC DISSOLUTION

15.1 Initial Term Duration and Hyper-Short Renewal Notice

This Agreement shall commence on the Effective Date and shall remain in effect for an initial period of five (5) years (the "Initial Term"). Upon the expiration of the Initial Term, this Agreement shall automatically renew for successive consecutive terms of three (3) years each (each a "Renewal Term"), unless Customer provides Vendor with a formal written notice of non-renewal exactly three (3) days prior to the expiration of the then-current term. If notice is not received by Vendor exactly within this 3-day window, the contract shall irrevocably bind Customer for the subsequent 3-year Renewal Term at the pricing matrix determined solely by Vendor under Section 7.1.

15.2 Asymmetric Termination Rights

Vendor may terminate this Agreement at any time, for any reason or no reason (termination for convenience), by providing Customer with thirty (30) days advanced electronic notice. Customer has no right to terminate this Agreement for convenience under any circumstances and must maintain its commercial commitments throughout the duration of the active term.

15.3 Termination for Cause Thresholds

Vendor may terminate this Agreement for cause with immediate effect if Customer fails to rectify an operational variance or fee delinquency within twenty-four (24) hours of electronic notice. Customer may only terminate this Agreement for cause if Vendor commits a catastrophic breach of core terms that remains completely unaddressed for a continuous period of one hundred and eighty (180) days following formal physical delivery of a default notice.

15.4 Post-Termination Data Forfeiture

Immediately upon the expiration or termination of this Agreement for any reason, Customer's right to access the Interface Portal shall cease instantly. Vendor shall have no obligation to preserve, extract, format, migrate, or deliver any Customer Core Data or transaction records. Vendor may immediately and permanently purge, overwrite, and delete all data records associated with Customer from its active servers and backup layers without retaining copies or providing any certificate of destruction.

16. GOVERNING FRAMEWORK, JURISDICTIONAL CONTROLS, & FORUM CHOICE

16.1 Governing Law

This Agreement, its structural interpretation, and all legal interactions or tort claims arising out of the performance of the Parties shall be exclusively governed by and interpreted in accordance with the laws of the State of Delaware, United States of America, without regard to any local conflict of law principles or international treaties.

16.2 Unilateral Forum Selection & Venue Control

The Parties explicitly agree that all disputes, lawsuits, equity actions, and legal challenges arising under this Agreement shall be brought exclusively in the courts of Wilmington, Delaware, USA. Customer irrevocably submits to the personal jurisdiction of such courts and completely waives any objection regarding inconvenient forum (forum non conveniens). The Parties explicitly exclude the application of arbitration mechanisms, mediation processes, or independent legal panels, and all disputes must be resolved through standard corporate litigation within the selected jurisdiction.

17. OPERATIONAL CONTROL TRANSFERS & DELEGATION RIGHTS

Vendor may freely assign, transfer, delegate, outsource, sell, or encumber this Agreement, along with all its rights, operational titles, data permissions, and contractual obligations, to any third-party entity, competitor, private equity fund, or corporate acquirer at any time without seeking consent from, or providing notification to, Customer. Customer is strictly prohibited from assigning its access rights, subscription positions, or contractual obligations under this Agreement to any entity, including its direct corporate Affiliates, without the prior express written consent of Vendor, which consent Vendor may withhold in its absolute and unreviewable discretion.

18. OPERATIONAL ANNOUNCEMENTS & WRITTEN COMMUNICATIONS

All structural announcements, legal default notices, and official communications under this contract must be executed in writing. For Vendor, notifications may be delivered via automated electronic post directly within the admin dashboard interface. For Customer, notices must be delivered via physical registered mail to Vendor's primary business office in Bangalore, India, with an explicit copy sent to the legal tracking node at notices@alphacloud.com. Electronic mail sent to Customer shall be deemed delivered exactly twelve (12) hours post-transmission by Vendor's servers.

19. INTEGRATION, CONSOLIDATION, & COMPLETENESS

This Agreement, alongside Schedules A, B, and C, contains the total unified agreement between the operational entities regarding the provisioning of cloud platform access. No external verbal agreements, prior memorandums of understanding, sales demonstrations, or purchase order text layers shall possess any legal weight or modify the terms herein. Vendor may update the text of this Agreement periodically by publishing a revised version within the software environment, and Customer's continued platform utilization shall represent full acceptance of all modifications.

20. ATTESTATION & EXECUTION

IN WITNESS WHEREOF, the Parties hereto have caused this Master Software as a Service Agreement to be executed by their corporate officers possessing structural execution permissions as of the Effective Date.

For AlphaCloud Technologies Pvt. Ltd.

By: _____

Name: Rajesh Kumar

Title: Chief Executive Officer

Date: June 18, 2026

For Nova Retail Solutions Ltd.

By: _____

Name: Vikram Malhotra

Title: Chief Technology Officer

Date: June 18, 2026

SCHEDULE A – PRICING, MODULES, & ADJUSTMENT MATRIX

The baseline financial parameters and software access configurations applicable to this transaction are established below:

1. Initial Subscription Fee Structures

Platform Element	Volume Parameters	Initial Annual Core Charge (INR)
AlphaCloud Retail Core Engine v5.0	Up to 1,500 Stores / 10,000 Terminals	₹45,000,000 (Subject to Unilateral Adjustment)
Advanced Supply Chain Optimizer Module	Multi-Warehouse Logistics Tracking	₹15,000,000 (Subject to Unilateral Adjustment)
AI-Driven Predictive Analytics Add-on	Customer Inventory Data Processing Models	₹10,000,000 (Subject to Unilateral Adjustment)
Unified Initial Annual Fee Layer	Global Enterprise Target Matrix	₹70,000,000

2. Infrastructure Setup & Environment Allocations

Setup Step	Description	Milestone Fee (INR)
Environment Provisioning	Activation of host server containers and cloud instance generation.	₹5,000,000
Password Generation & Release	Delivery of remote interface keys via electronic transmission.	₹15,000,000

SCHEDULE B – OPERATIONAL AVAILABILITY TARGETS & RESPONSE WINDOWS

This schedule outlines the technical support queues and platform performance expectations managed under this engagement.

1. Uptime Acknowledgment

Customer acknowledges that platform operation relies upon public internet backbones, distributed routing frameworks, and third-party infrastructure. The target availability of 99.9% is an idealized calculation model and carries no refund, legal offset, or service credit remedies under any circumstances.

2. Support Query Intake & Severity Classifications

Classification	Operational Impact Model	Target Response Time
Severity 1	Total absence of platform accessibility across entire multi-location terminal framework.	No Fixed Timeline (Queue Basis)
Severity 2	Major functional modules rendering error logs during high-volume processing hours.	No Fixed Timeline (Queue Basis)
Severity 3	Minor tracking features or localized reporting layouts failing to compute metrics.	Standard Operational Hours Only

SCHEDULE C – GENERAL SYSTEM INFORMATION STANDARD

The following operational items define the absolute limits of the technical environment maintained by Vendor:

1. **Infrastructure Model:** Vendor utilizes shared hosting architecture with commercial public cloud nodes. Vendor is not bound by specialized perimeter verification testing, physical entry log isolation, or dedicated container separation.
2. **Cryptographic Controls:** Data transfers occur over basic internet protocol configurations. Vendor does not guarantee persistent end-to-end data packet encryption, network-layer integrity token verification, or localized token isolation.
3. **Vulnerability Management:** Software patches and infrastructure configuration upgrades are applied at the sole discretion of Vendor's engineering team, without requirement for prior sandbox testing, code deprecation analysis, or security regressions.
4. **Data Portability:** Vendor's proprietary databases utilize customized text formatting and indexing structures. Vendor makes no representation that stored data records can be cleanly parsed, systematically downloaded, or exported to common file schemas like JSON or SQL.